

Chapter 6 — Capability-Class and Treaty Governance

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1. Purpose

Preserve Owner-reserved approvals and sovereign, bounded external cooperation.

2. Scope

This chapter governs Treaties, active Treaties, capability proposals, external assurance, new capability classes, providers. It defines institutional procedure and does not create constitutional, technical, operational, or security authority.

3. Authority and source requirements

Book I Decisions 48-50; Book II Trust/Firewall/Treaty architecture; Books IV, VIII, IX. Book I prevails. Final Books V and VI retain their operational and security/privacy/trust execution authorities; Book VII supplies institutional governance only.

4. Definitions and roles

Primary accountable roles: Capability Steward, Owner, Treaty Steward, Constitutional Steward, Trust Assessor. Authority means explicit bounded permission to decide; expertise and administrative access do not create it.

5. Normative controls

TRT-06-001 — Identify new capability classes

A proposal **MUST** determine whether it creates a new capability class rather than merely a new provider, adapter, version, or implementation.

- Applicability: capability proposals
- Responsible role: Capability Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Capability Classification Record
- Severity: Critical
- Exception authority: Owner

TRT-06-002 — Reserve capability-class approval

A new capability class **MUST NOT** activate without explicit Owner approval supported by risk, authority, verification, containment, reversibility, and retirement evidence.

- Applicability: new capability classes
- Responsible role: Owner
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Owner Approval Record
- Severity: Critical
- Exception authority: Owner

TRT-06-003 — Qualify providers separately

Provider qualification, procurement, trust, certification, credentials, or availability MUST NOT substitute for capability-class approval or action Authority.

- Applicability: providers
- Responsible role: Capability Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Separation Test
- Severity: Critical
- Exception authority: none

TRT-06-004 — Require Treaty approval

Each Treaty and material renewal or scope change MUST receive explicit Owner approval after identity, purpose, capability, data, privacy, security, duration, revocation, audit, and Firewall review.

- Applicability: Treaties
- Responsible role: Treaty Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Treaty Decision Record
- Severity: Critical
- Exception authority: Owner

TRT-06-005 — Preserve sovereignty

A Treaty MUST NOT merge constitutional identity, transfer Owner authority, bypass the Constitutional Firewall, or make trust equivalent to permission.

- Applicability: Treaties
- Responsible role: Constitutional Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Sovereignty Review
- Severity: Critical
- Exception authority: none

TRT-06-006 — Separate Treaty roles

Treaty proposer, trust assessor, privacy/security reviewers, Owner approver, Firewall operator, and evidence custodian MUST be distinct or use documented compensating separation.

- Applicability: Treaties
- Responsible role: Treaty Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Treaty RACI
- Severity: High
- Exception authority: Owner

TRT-06-007 — Govern suspension and revocation

Treaty suspension or revocation MUST define trigger, authority, effective time, propagation, in-flight handling, data quarantine, notification, evidence, appeal if permitted, and reinstatement.

- Applicability: active Treaties
- Responsible role: Treaty Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Treaty Lifecycle Record
- Severity: Critical
- Exception authority: Owner where scope changes

TRT-06-008 — Review external assurance

External attestations MUST be scoped, dated, independently evaluated, and unable to replace HAL verification, Owner approval, or Firewall enforcement.

- Applicability: external assurance
- Responsible role: Trust Assessor
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Reliance Assessment
- Severity: High
- Exception authority: Treaty Steward

6. Required procedure

The proposer MUST submit the classified proposal and evidence. The recorder MUST verify authority and conflicts. Required independent reviewers MUST issue findings. The controlling authority MUST decide exact scope and conditions. The recorder MUST publish authoritative status, retain evidence, schedule review and sunset, propagate effects, and preserve appeal rights.

7. Prohibited practices

Off-record decisions, authority inference, self-approval, hidden conflicts, silent precedent, selective evidence, indefinite emergency power, permanent exceptions, and retroactive record alteration are prohibited.

8. Evidence, publication, and retention

The package MUST preserve proposal, sources, authority, conflicts, evidence, alternatives, affected parties, deliberation, dissent, decision, conditions, effective state, propagation, review, sunset, appeal, supersession, classification, access, and retention.

9. Exceptions, failure consequences, and appeals

A failed Critical control blocks the decision or suspends its effect. A High failure requires correction or a valid expiring exception. Appeals use Chapter 12. No exception can waive Book I or manufacture Owner authority.

10. Security, privacy, reliability, and continuity

Governance records MUST be integrity-protected, least-privilege, purpose-bound, minimized, available for authorized review, recoverable, and resistant to compromised identities or record systems.

11. Verification and metrics

Verify authority paths, role separation, record completeness, evidence integrity, propagation, expiry, appeal, and source traceability. Measure reversals, calibration, escaped harms, exception age, burden, remedy, and decision latency.

12. Traceability, examples, review, and status

- Source basis: Book I Decisions 48-50; Book II Trust/Firewall/Treaty architecture; Books IV, VIII, IX.
- Book V reconciliation: `planning/BOOK\_V\_RECONCILIATION\_REGISTER.md`.
- Book VI reconciliation: `planning/BOOK\_VI\_RECONCILIATION\_REGISTER.md`.

Example: a committee recommends a risk response, but the record names the authorized Risk Owner as approver, preserves dissent, sets expiry, and triggers certification impact review.

Anti-pattern: an urgent meeting labels a policy “temporary,” grants indefinite power to its chair, omits conflicts, and treats silence as Owner approval.

Chapter review: PASS. Owner Review items: none created by this chapter. Completion status: CERTIFIED FINAL.